C/2024/5792

7.10.2024

Appeal brought on 14 August 2024 by Magistrats européens pour la démocratie et les libertés (Medel), International Association of Judges, Association of European Administrative Judges, Stichting Rechters voor Rechters against the order of the General Court (Grand Chamber) delivered on 4 June 2024 in Case T-530/22 JT, Medel and Others v Council

(Case C-555/24 P)

(C/2024/5792)

Language of the case: English

Parties

Appellants: Magistrats européens pour la démocratie et les libertés (Medel), International Association of Judges, Association of European Administrative Judges, Stichting Rechters voor Rechters (represented by: C. Zatschler SC, D. Sarmiento Ramírez-Escudero, abogado, E. Egan McGrath SC, A. Bateman, M. Delargy, Solicitors)

Other parties to the proceedings: Council of the European Union, Hungary, Republic of Poland, European Commission

Form of order sought

The Appellants claim that the Court should:

— set aside the order under appeal;

— reject the plea of inadmissibility raised by the Council, declare the applications admissible and refer the case back to the General Court to rule on the substance, and

— order the Council to bear the Appellants' costs in relation to the plea of inadmissibility as well as the appeal, and bear its own costs in relation thereto, irrespective of the outcome of the case.

Pleas in law and main arguments

The first plea concerns the standing of Polish judges affected by decisions of the Disciplinary Chamber, where the General Court's reasoning is vitiated by an incorrect interpretation and application of the established case law of the Court of Justice relating to the notion of 'direct concern' provided for in Article 263(4) TFEU, as set out notably in Nord Stream 2 ([1]). The General Court erred in at least the following respects, articulated as separate limbs of this plea:

(1.) instead of focussing on the concrete effect of the milestones on the judges at issue, the General Court instead concentrated on their purpose and nature,

(2.) the General Court incorrectly reduced the milestones to being 'of a budgetary conditionality nature' rather than recognising them as requirements to introduce specific reforms, and

(3.) the General Court erred in its interpretation and application of the 'direct link' requirement as developed in Nord Stream 2 in concluding that milestones F2G and F3G did not alter the legal situation of judges affected by decisions of the Disciplinary Chamber.

The second plea concerns the standing of judges generally, who are directly concerned by the failure of the three judicial milestones to re-establish effective judicial protection and thus notably requiring them to fulfil their functions, including adjudicating cases concerning Recovery and Resilience Facility funding, in precarious circumstances. The General Court in this context erroneously proceeded on the basis that relevant effects for direct concern can only derive from the imposition of positive obligations on applicants and not from an omission to impose necessary safeguards in the applicants' favour.

([1]) Judgment of 12 July 2022, Nord Stream 2 v Parliament and Council, C-348/20 P, EU:C:2022:548.

The third plea concerns the failure of the General Court to recognise that, in the light of the particular circumstances of the present case, the conditions for admissibility should have been interpreted in a way such as to find that the Appellants and their members were directly concerned. This plea also challenges the application of the Carvalho ([2]) case-law, concerning the standing of the Appellants in their own right. The arguments advanced in the context of this plea relate to:

(1.) breach of Article 263(4) TFEU in light of the fundamental right to an effective judicial protection, as provided in Article 19(1) TEU and Article 47 of the Charter;

(2.) the KlimaSeniorinnen ([3]) jurisprudence of the European Court of Human Rights;

(3.) the scheme of protection of the rule of law as set out by the General Court at paragraph 118 of its Order.

([2]) Order of 8 May 2019, Carvalho and Others v Parliament and Council, T-330/18, EU:T:2019:324.

([3]) Verein KlimaSeniorinnen Schweiz and Others v Switzerland, App. N° 53600/20, CE:ECHR:2024:0409JUD005360020.